



Charities Act 2011

2011 CHAPTER 25

PART 11

CHARITABLE INCORPORATED ORGANISATIONS (CIOS)

CHAPTER 1

GENERAL

Formation and registration of CIO

207 Application for CIO to be constituted and registered

- (1) Any one or more persons (“the applicants”) may apply to the Commission for a CIO to be constituted and for its registration as a charity.
- (2) The applicants must supply the Commission with—
 - (a) a copy of the proposed constitution of the CIO,
 - (b) such other documents or information as may be prescribed by CIO regulations, and
 - (c) such other documents or information as the Commission may require for the purposes of the application.

208 Cases where application must or may be refused

- (1) The Commission must refuse an application under section 207 if—
 - (a) it is not satisfied that the CIO would be a charity at the time it would be registered, or
 - (b) the CIO's proposed constitution does not comply with one or more of the requirements of section 206 (constitution of CIOS) and any regulations made under that section.

***Changes to legislation:** Charities Act 2011, Cross Heading: Formation and registration of CIO is up to date with all changes known to be in force on or before 25 June 2025. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details) View outstanding changes*

- (2) The Commission may refuse such an application if—
- (a) the proposed name of the CIO—
 - (i) is the same as, or
 - (ii) is in the opinion of the Commission too like,
 the name [^{F1}or a working name] of any other charity (whether registered or not), or
 - (b) the Commission is of the opinion referred to in any of paragraphs (b) to (e) of section 42(2) (power to require charity's name [^{F2}or working name] to be changed) in relation to the proposed name of the CIO (reading paragraph (b) as referring to the proposed purposes of the CIO and to the activities which it is proposed it should carry on).

Textual Amendments

- F1** Words in s. 208(2) inserted (14.6.2023) by [Charities Act 2022 \(c. 6\)](#), s. 41(4), [Sch. 2 para. 33\(a\)](#); [S.I. 2023/643](#), [Sch. para. 20\(p\)](#)
- F2** Words in s. 208(2)(b) inserted (14.6.2023) by [Charities Act 2022 \(c. 6\)](#), s. 41(4), [Sch. 2 para. 33\(b\)](#); [S.I. 2023/643](#), [Sch. para. 20\(p\)](#)

209 Registration of CIO

- (1) If the Commission grants an application under section 207 it must register the CIO to which the application relates as a charity in the register of charities.
- (2) The entry relating to the charity's registration in the register of charities must include—
 - (a) the date of the charity's registration, and
 - (b) a note saying that it is constituted as a CIO.
- (3) A copy of the entry in the register must be sent to the charity at the principal office of the CIO.

210 Effect of registration of CIO

- (1) Upon the registration of the CIO in the register of charities, it becomes by virtue of the registration a body corporate—
 - (a) whose constitution is that proposed in the application,
 - (b) whose name is that specified in the constitution, and
 - (c) whose first member is, or first members are, the applicants referred to in section 207.
- (2) All property for the time being vested in the applicants (or, if more than one, any of them) on trust for the charitable purposes of the CIO (when incorporated) by virtue of this subsection becomes vested in the CIO upon its registration.

Changes to legislation:

Charities Act 2011, Cross Heading: Formation and registration of CIO is up to date with all changes known to be in force on or before 25 June 2025. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations.

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Changes and effects yet to be applied to :

- s. 106(1)-(1B) substituted for s. 106(1) by [2022 c. 6 s. 16\(a\)](#)
- s. 322(2)(ea) inserted by [2022 c. 6 Sch. 2 para. 26](#)
- s. 331A331B and cross-heading inserted by [2022 c. 6 s. 15](#)

Changes and effects yet to be applied to the whole Act associated Parts and Chapters:

Whole provisions yet to be inserted into this Act (including any effects on those provisions):

- s. 106(1)-(1B) substituted for s. 106(1) by [2022 c. 6 s. 16\(a\)](#)
- s. 322(2)(ea) inserted by [2022 c. 6 Sch. 2 para. 26](#)
- s. 331A331B and cross-heading inserted by [2022 c. 6 s. 15](#)